



Book reviews

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BOOK REVIEWS

Kingship, Law and Society: Criminal Justice in the Reign of Henry V. EDWARD POWELL. Oxford. 1989. Clarendon Press. xii + 319 pp. (incl. index). £35.00 cased.

There was a time when the enforcement of law and order was regarded as an essentially administrative issue, its effectiveness estimated by the number of thieves and killers hanged. Nowadays it has increasingly come to be seen as an offshoot of politics, both national and local, with the processes of law being chiefly employed for purposes of conciliation. Behind this change in outlook may be detected the influence of the late K. B. Macfarlane, promoting a move away from a view of late medieval society and government as directed principally from the centre. In this weighty new study of criminal justice in the reign of Henry V, Dr Edward Powell acknowledges his indebtedness to Macfarlane, while aspiring to 'a more complete constitutional history', in which justice will be analysed in the context of contemporary ideas, attitudes and beliefs.

After a brief introduction, the book is divided into three parts. The first is devoted to a succinct discussion of outlooks. England is placed in her European context, and seen as differing from her neighbours above all in the precocious power of her monarchy, such as to make despotism a genuine possibility. Political resistance found expression in constitutional terms. To Sir John Fortescue the monarchy's freedom of action was restricted by law, Parliament and the king's own coronation oath. Law was exalted in theory, therefore, but all too often abused and condemned in practice. As administered by the king's courts it posed a threat to local independence, not to say privilege, and no doubt also, as Powell concedes, popular expectations of it were pitched unrealistically high.

The second part consists of a spacious account of the system of justice as it had developed in England by the early fifteenth century, and of its antecedents. Appearances to the contrary, that system was essentially decentralised. Fundamental to this book is the importance of local initiatives, both in initiating prosecutions and settling disputes. Legal processes were, indeed, only one form of dispute settlement, and were often used primarily as a means of putting pressure on an opponent. Powell is subtle and convincing in his demonstration of the importance of arbitration, and of the inadequacy of the records of the king's courts as sources for the manoeuvres which brought it about. Royal justice, by contrast, could be resented as an intruder upon local affairs, and it might also be regarded as corrupt, though less so, apparently, in the fifteenth century than earlier.

The third and longest section is devoted to the enforcement of criminal justice in the reign of Henry V. Heavy stress is laid on the central role of King Henry himself, and so on his personality and outlook. Against the background of the uncertainties of his father's reign, the new king from the first approached law enforcement from two different angles, showing himself clement in his issue of a general pardon, but firm and decisive in his suppression of the Lollard rising of 1414. The core of the book, however, consists of an analysis of the sessions of the superior eyre of King's Bench in the Midlands and on the Welsh Marches, also in 1414. These were reasonably successful in getting defendants into court, but the

conviction rate was negligible. Did this matter? It is Dr Powell's contention that reconciliation was, and had to be, 'the keynote of Henry V's policy of law enforcement', for whereas most of the Lollards were artisans and shopkeepers, a high proportion of those indicted in the counties were gentry, men of rank and standing in their communities, which could hardly be governed without them. So they were recruited into the royal armies, made to enter into recognisances for their future good behaviour, penalised financially by having to make fine or buy pardons, and given every inducement to come to terms with local rivals. Where local government was itself a cause of disorder, because its administration was corrupt or excessively concentrated in a few hands, offending officials might be dismissed, aggressive lords sent overseas to France or Ireland.

It is one of the many merits of his book that Dr Powell does not overstate his claims for Henry V's success in his programme of law enforcement. The king lacked coercive power, and was most effective when using royal authority to uphold attempts at conciliation undertaken by others. Prestige counted for a great deal. 'Dynamism' is a word often employed in Dr Powell's pages; at the start of his reign Henry V's image as an active young king who clearly meant business did much to make his policies effective, and after 1415 the charisma of the victor of Agincourt must likewise have contributed to his ability to keep the peace at home while himself remaining on campaign in France. It was on the Continent, indeed, rather than in England, that his achievement as a lion of justice was most highly applauded (though this must have owed a good deal to the unusual firmness with which he controlled his own troops abroad).

The reign of Henry V was a short one, and his achievement in maintaining public order did not long outlive him – it was, in Dr Powell's words, 'a triumph of personal authority'. There was no significant institutional advance while he was king, and one may wonder whether Henry could have maintained the status quo had he reigned for much longer. Although there was no large-scale recruitment of common criminals as there had been under Edward I, a considerable number of the men who went to France in 1415 and later had been violent and aggressive before they crossed the Channel, and are hardly likely to have been made less so by their experiences at Agincourt or Meaux. There must also have been many of the rank and file who, like Shakespeare's Pistol, eventually left for England deciding that they would 'something lean to cutpurse of quick hand' – what happened when Ancient Pistol came home? And concentration on the king's dealings with the gentry, and on the gentry's dealings with each other, though rewarding in itself, inevitably entails omissions elsewhere. In his coronation oath the king undertook to administer impartial justice and to uphold and defend the laws on behalf of *all* his subjects. The world of organised crime, though not entirely passed over, does not receive extended treatment, although for most of the king's subjects it would surely have constituted at least as great a threat as the brawlings of the nobility and gentry. No doubt the evidence is scarce (though many gaol deliveries under Henry VI would have tried suspects for offences committed in the previous reign), but more attention to this aspect of criminal behaviour would have been welcome. Finally, the stress Dr Powell lays on conciliation, and his claims for the prevailing desire, as well as need, for social harmony, occasionally seem excessive, and are hard to square with the evidence for the sharp-elbowed jostling for position which his own pages describe only too clearly. For instance, many indictments will have been malicious, and, had they succeeded, could have led to their victims being hanged. It would be rash to assume that this was never their intention. But it would be wrong to end this

review on a note of reproach to Dr Powell for a book of considerable distinction, wide-ranging and lucidly written. If one wants to know about other aspects of his subject over longer periods of time, this is in itself a tribute to the author's achievement, as well as constituting a further claim on his time and scholarship. One can only hope that circumstances will permit him to meet it.

HENRY SUMMERSON

Sir Henry Maine: A Study of Victorian Jurisprudence. R. C. J. COCKS. Cambridge. 1988. Cambridge University Press. viii + 224 pp. (incl. index). £25/\$49.50 cased.

Raymond Cocks describes his book as 'neither a conventional biography nor an abstract analysis of Maine's thought, but a demonstration of the contemporary context and significance of his views'. To the extent that he adheres to this agenda, Cocks makes a significant contribution to our thinking about Maine. There are, however, substantial sections of the book which attempt an evaluation in terms of a much more conventional 'history of ideas'. Duxbury has dealt at length with these (and other) aspects of the book in a basically critical, though in my view fair, review article ('Making Legal History', *Modern Law Review* 52 (1989), 856-67). This review seeks, more briefly, to place both Cocks' achievement and his failure in a more overt, historiographic context. To do so, as Cocks would be the first to recognise, is to follow in the spirit of Maine's teachings.

The conventional separation of biography from the exposition of an author's ideas parallels a long standing division in linguistics between semantics and pragmatics. Today, that latter distinction has broken down. To grasp the meaning of a text involves an understanding of the act of its enunciation, as well as its content. Further, the 'act of enunciation' must be understood in terms far wider than mere discernment of the author's intention. Cocks' attempt to relate the sequence of Maine's published work to the development of his personal beliefs and aspirations, is, therefore, most welcome. We are able, thereby, to view Maine's period in India not simply as a convenient anthropological field-trip, which was to provide data on Indian village communities for the books subsequent to *Ancient Law*, but to realise Maine's involvement in the world of affairs – not just as colonial administrator, but also as journalist and failed legal practitioner. Maine also had a peculiar career within legal education: appointed at the age of 25 to the Regius Professorship of Civil Law, he chose to move a few years later to a Readership at the Inns of Court, where he attempted to enlighten the students through a form of legal education which he was unable to promote as anything other than marginal at both Cambridge and (later) Oxford. This casts light upon his choice (for that it must surely have been) to adopt a form of presentation which was bound, then as now, to attract criticism from the professionals. For Maine was concerned, as Cocks shows, both to emancipate the lawyer from the technicality of his own profession, and to communicate to a wider world – of politicians, administrators and intelligent lay-persons. In short, both Maine's work and his life may be regarded as 'marginal' in the literal sense:

despite the elevated appointments he received, he remained deeply out of sympathy with the basic approaches of both the practising and the academic lawyers whom he sought to bring into communion; hardly surprising, then, that the interdisciplinarity which his work promoted was similarly marginal, being located at the interface of law, history, philology etc., but central to none.

Cocks' objective, therefore, is admirable, and to a large extent he achieves it. Where he falls short is in his failure to recognise any historiographical chasm between the writing of Maine's era and that of today. Cocks' own presentation is afflicted by many of the same flaws he identifies in Maine (as Duxbury has pointed out). Indeed, it almost seems that Maine has written Cocks, rather than vice versa. By not going beyond Maine's expressed statements of aspiration, Cocks' Maine emerges as rationalist and idealist; so too Cocks' writing is characterised by broad generalisation (even where limited by rhetorical qualification) and he, like Maine, indulges in a prescriptivism which tells us how other authors ought to have related to Maine, even while accepting that Maine's agenda was largely irrelevant to them. Maine's genre of theorising in legal history is thus applied by Cocks to modern legal historiography.

Yet the historiographical agenda has, indeed, changed since Maine's day, notwithstanding the undoubted fact that legal education is again beginning to move through the cycle from technicism to humanism. The difference, on this occasion, resides at the epistemological level. Grand theory is returning – not with an alternative form of social evolution, but rather with a set of conceptions of knowledge through (or despite) discourse.

It is in this light that some will view the new impetus provided by Cocks for an understanding of the relations between Maine's life and work. This reviewer has not yet been tempted from semiotics to deconstructionism, and much could be said of the semiotic construction of Maine's biography in Cocks' work. But I must confess that nothing more than this biography has prompted in me any sympathy towards deconstructionism: for while the discourse about the person (the biography) is presented as coherent (and must be so, at least minimally, if it is to be intelligible at all), the various leaps, gaps, inconsistencies and omissions in it lead one to suspect that Maine, as a person, was a mass of contradictions. In the light of Cocks' book, I would like nothing more than to hear Maine 'in the psychiatrist's chair'. Autobiography, perhaps, represents the real interface between semiotics and deconstruction.

I conclude with a more conventional argument for the historiographical gap between Maine and ourselves. Cocks expresses disappointment at the poor reception accorded to Maine's ideas by the world of jurisprudence. Elsewhere, he discusses Maine's theory of sources of law as an instance of his social evolutionism, wherein Maine addressed himself to the Victorian concern with progress. Nineteenth-century historiography would assess such a theory in terms of the weight of evidence adduced in support of it. Modern historiography, quite apart from asking how such 'evidence' is constructed and made plausible, would concern itself equally with the epistemological sources of the hypothesis itself. In other words, the quality of theory construction is as important as that of evidentiary validation. Yet when we look at the construction of Maine's theory of the sources of law, we find a huge jurisprudential assumption already embedded in it. I refer here not to the well-known criticism of Maine for according priority to *themistes* over custom (a question begged by Cocks, in describing the *themistes* as 'unregulated personal commands of someone in authority' – my emphasis), but rather to Maine's notion of 'true unwritten law' which was the possession of

'groups such as aristocracies who knew the law and administered it' (Cocks, p.3). The unquestioned assumption here, which forms an essential part of Maine's theory construction, is that 'law' is by definition a body of rules applied in the context of adjudication. But that is to read back a modern notion. There is considerable evidence from ancient law that the promulgation of rules was a quite separate activity from that of the adjudication of disputes. Officials might 'teach law' to the people, or inscribe it on stone to the glory of the monarch, even while local community leaders adjudicated disputes by negotiation, informed by a general, culturally-constructed sense of justice (see further Jackson, *Am J. Comp. L.* 23 (1975), 490-512; *idem*, 'Ideas of Law and Legal Administration: a Semiotic Approach', in *The World of Ancient Israel: Sociological, Anthropological and Political Perspectives*, ed. R.E. Clements, Cambridge University Press, 1989, 185-202). In the ancient world, rules were frequently used as 'dharma', rather than as 'law'.

On Cocks' account, Maine himself embodied this opposition. Temperamentally a dharmist, he sought both recognition from and engagement with the lawyers. It is difficult to attribute to him any great success in this. For while Maine sought to humanise the profession, the lawyers have in fact succeeded in professionalising the students. Perhaps the time has now come for a serious attempt to transcend the opposition, through an academic analysis of professional practice itself, one in which the history of the profession (to which Cocks has made notable contributions) would play a major part. In that way, Maine's brave agenda might still be pursued.

B. S. JACKSON

The Birth of the English Common Law (2nd ed). R. C. VAN CAENEGEM. Cambridge. 1988. Cambridge University Press. xviii + 160 pp. (incl. index). £27.50/\$39.50 cased, £9.50/\$13.95 limp.

A bold red border surrounds a statement on the compliments slip which Cambridge University Press enclosed with the review copy of this volume. 'Please note', it says. 'This is a *new* book, not a paperback edition of a book previously published in hard covers.' The words 'Second Edition' prominently displayed on the cover similarly whetted the appetite. The 1973 version of *The Birth of the English Common Law* had been such a stimulating and scholarly discussion of the period from the Conquest to Glanvill that the prospect of a new edition was most exciting.

Well, there may be someone at C.U.P. who would like to argue philosophically about the essence of novelty, but for my part I have to say that this is not a new book. Nor indeed, because of the expectations which the words might conjure in the reading (and, of course, the buying) public, would I have described it as a 'Second Edition' without a certain amount of looking at the floor and nervous shuffling of the feet. The truth of the matter is revealed only inside the cover: 'First published in 1973 [the book] has come to enjoy classic status, and in a *new preface* Professor Van Caenegem discusses . . .' [my emphasis]. This is an old book with nine new pages. Professor Van Caenegem acknowledges this fact with that same no-nonsense honesty which marks the substance of the text. He is, he tells us (p. vii), one of those authors who 'leave their work completely behind them as soon as it is out; [who] cannot even bring themselves to re-read it because

they have moved on to other concerns and are getting bored with the book they have written, re-read and proof read up to saturation point'.

So how does one review this text? The 'first' edition is well known and much admired, sure in its handling of the development of the early common law. For those who are unfamiliar with the text a few words will perhaps be in order to outline the areas considered, subjects which Van Caenegem's work has lifted into clear relief, though some of them have still not been elevated beyond the controversial. The first Chapter deals then with the impact of the Norman Conquest and the development of a central bureaucracy which specializes into, *inter alia*, judicial bodies. The royal courts, the thesis maintains, take jurisdiction from older more local assemblies as a result of pressure from litigants seeking more certain and more structured justice. Chapter 2 argues for a development of the originating writ from a rather arbitrary one-sided intervention in a dispute to a guarantee of judicial investigation which, together with the changing *locus* of adjudication ensured by the reforms of Henry II, cemented a radical transformation in the framework of administration of justice: the birth of the system of common law available in the king's courts. Chapter 3 considers the development of the jury, the transition from 'irrational' to 'rational' methods of trial (though these terms are in fact no less question-begging than the epithet 'primitive' which the author rather reluctantly abandons at p. 63. In Van Caenegem's thesis the elements of 'rationality' within a system which might ultimately resort to the ordeal are underexplored, though there are some rather odd assertions about the 'parapsychological' capacities of 'primeval' man (p. 67)). The author's well-known contention concerning the combination of the Frankish inquest with an Anglo-Saxon dispute settlement technique to produce the jury with which we are familiar is then rehearsed. In the final Chapter Van Caenegem discusses the differences between the development of English and Continental law. In truth the whole of the work is informed by continental comparisons and contrasts and the author's thesis that the precocious growth of the English system – a result of the chance coming together of the tradition of Anglo-Saxon kingship, the vigour of the Norman Conquest and the personality of Henry II – served as insulation from the influence of Roman law, rounds off the survey. There is much good material here, but the whole treatment now seems rather dated. I doubt whether it is now necessary to discuss at any length, even to reject, the *Volksgeist* theories of Hegel and Pringsheim, which would seem, I suspect, quaintly archaic to the modern student. Evidence that 'this romantic vein of legal history has not entirely dried up' comes in the form of a quote from a volume of over thirty years ago!

Here then we reach the crux of the matter. For in all this not a word has been changed since 1973, not a note varied (the less than self-evident distinction between the lettered footnotes and numbered endnotes remains), not a page number altered. What then is new? The 'Preface to the Second Edition' mentions some of the important work which has appeared since 1973. These studies are either simply reported (such as Wormald's 'solid and illuminating' work on the Anglo-Saxon legal system) or are the subjects of the briefest provisional remarks (Milsom's assault on the traditional perception of early law, Clanchy's deeply challenging work which makes us ask questions of the very sources from which we draw our image of the past). In some cases the reader is reassured that important matters such as the Milsom thesis or the issue of early development of the Exchequer will be dealt with in the author's forthcoming volume for the Selden Society – the current volume acting in these instances as a rather insubstantial bridge between the last and the next important works. Some developments – such

as Palmer's important 1985 contribution to the land law debate (Vol. 3, *Law and History Review*, p. 1) – are not mentioned at all.

I may have missed the point here. It may be that this is really intended as one of the Cambridge Paperback Library's 're-issues of classic works from the past' (a phrase which occurs as descriptive of one of the functions of the series on the back cover, but surely when a reviewer finds himself reading the small print of the blurb as if it were an insurance contract something has gone awry). But if this is the case then I restate my concern that it will be bought as a new book. This I think at least implies that the index would be altered to include the material in the new preface. It might well have implied that the notes would have been updated. The deficiency in this respect is at times amusing (is Dr Milis *still* preparing the same article as he was in 1973? p. 119 note 31, or Professor Yver still working on his study of Norman writs? p. 130 note 122), but for a student wishing to use the text it could be frustrating (references to Milsom's *Historical Foundations* are to the first edition of that text, both in the old notes and also, more perplexingly, in the new preface). Best of all of course would have been a major updating of the text itself.

Having said this much let me restate that this is a very, very fine book, which deserves to be read by all students of this fascinating period of legal history. Yet the disappointment remains, for Professor Van Caenegem's expertise and lucidity would have been greatly welcomed if he had, in this most readable of texts, taken into account more fully recent scholarly discoveries and disputations. Students of legal history needed a second edition of *The Birth of the English Common Law*. Unfortunately they still do.

R. W. IRELAND

Inventing the Industrial Revolution. The English Patent System 1660–1800. CHRISTINE MACLEOD. Cambridge. 1988. Cambridge University Press. xii + 302 pp. £25 cased.

This book is a history of the patent system between the years 1660 and 1800 by Christine Macleod, a Research Fellow of Clare Hall, Cambridge and a Course Tutor, Open University. It is a book based on her Ph.D thesis. In fact the title is slightly misleading in that she covers the early development of the system of patents for industrial inventions between 1550 and 1660 in the first chapter. Initially of course industrial patents were merely one type of 'litterae patentae' or 'open letters' granted under the Royal Prerogative. Their early use was largely confined to granting trading privileges to foreigners, encouraging them to come and settle in England and develop their inventions – the import substitution policy. An early and sophisticated exponent of this policy was William Cecil, Lord Burghley. The abuse of the patent system to create monopolies to raise royal revenue and to reward royal favourites, in the latter part of the reign of Elizabeth I and the early Stuarts, is documented, and Parliament's reaction to this led to the passing of the Statute of Monopolies in 1624. This statute which almost as an after-thought allowed the patenting of inventions for a period of 14 years (s.6) was the legislative basis for the period covered by the author.

The author traces the development of the system from an instrument of royal patronage into one for the protection of intellectual property among the inventors and manufacturers of the early industrial revolution. She seeks to relate the development of the patent system to the parallel development of industrial

activity in England – and justly warns against generalisations and facile conclusions drawn from a simple graphic representation of the rising number of patents. The exact relationship between the development of an industrial economy and a patent system is still a matter of some controversy.

The author examines the overall development of the system, the attitude of the judiciary to the system, who was patenting what and where, who was operating inside the patent system and who was operating outside the patent system, the goals of invention and the economic and political arguments for and against monopoly patents. Curiously at the end instead of the beginning of the book there is an important chapter on philosophic attitudes to invention in this period – a change from their being a provident gift from a benign deity, revealed to individuals as part of some divine plan, to invention being recognised as the creation of rational human endeavour.

The early system was one of registration, unlike the modern system which involves detailed examination of a complex specification and all the relevant prior literature. Unlike controversies over the protection of authors and the development of copyright, the development of the industrial patent system did not engender great public controversy and was rarely a central matter of policy and political argument – by 1800 the promotion of invention and technical changes was only just beginning to assume national importance: 'England's heroes were still Shakespeare, Milton and Locke; few had heard of Arkwright and Watt, let alone Kay or Newcomen' (p. 62).

It was only at the end of the period with the development of modern economics that a more sophisticated analysis was being undertaken into the rationale of a system of allowing inventors a limited monopoly as an incentive to invent and develop. This monopoly versus free competition argument still subsists today. The author shows that it was not easy to patent, the bureaucracy and cost were major obstacles and the intricacies of the system were notorious (see Charles Dickens, *Little Dorrit*, ch.10 – his strictures on the infamous Circumlocution Office – and 'A poor man's tale of a patent') and until fundamental reform in 1852 it was a wonder anybody persevered. It is a problem which still exists today – see creation of 'cheap' county court jurisdiction by the Copyright, Designs and Patents Act 1988.

In some ways the author's cut-off point of 1800 is rather arbitrary and it would have been interesting to have a picture of the operation of the system in the early part of the 19th century when attitudes to invention had changed. The author shows that the system was never fully accepted in this period (ch. 10) and other ideas such as one-off bounty payments or a system of state purchase accompanied by some sort of annuity were constantly being advanced. The concept of inventions as property was slow to take root and the French concept of the natural rights of the creator did not take root at all here. In chapter four the author looks at the role of the judiciary, where there was a distinct break in the mid-18th century when the Privy Council ceded its jurisdiction to the common-law courts. Reflecting Coke's hostility to monopoly the courts were hardly encouraging and decisions were often arbitrary and inconsistent: 'In 1829 Marc Isambard Brunel told the select committee that "I might as well toss for the fate of a patent" in the courts, and another witness more soberly considered, "there being no existing basis of law, the dictum of the judge is one thing one day and another thing another"' (p. 62).

As in other areas of commercial law Lord Mansfield's decisions played an important part, e.g. *Morris v Branson* (1776) holding that patents could be valid

for additions and improvements to existing inventions reversing the effect of *Bircot's Case* (1572). He also gave an impetus to the specification system – detailed revelation of the secrets of the invention to the public in return for the monopoly which formed the basis of the modern examination system. Two minor quibbles with this chapter, firstly the use of the term prosecution indiscriminately to refer to both civil and criminal cases, and secondly few direct references to and citations of the cases and judgments being discussed rather than reference to secondary sources such as Holdsworth.

Overall I found this a useful and informative work which avoided sweeping generalisations and brought out the ambivalence, ambiguities and uncertainties of the infant patent system very well.

HOWARD JOHNSON

The Constitutional Jurisprudence of the Federal Republic of Germany. D.P. KOMMERS. Duke University Press. 1990. xxxvi + 590 pp. (incl. index). £29.25 paperback.

This volume achieves a number of possible aims rather than just providing a historical analysis of the decisions of the Constitutional Court of the Federal Republic of Germany¹ or alternatively, acting simply as a casebook in translation. It combines a textbook commentary with an extremely sophisticated, annotated casebook whilst at the same time providing a comparative commentary on Constitutional courts. The main comparator is the United States Supreme Court, which reflects the intended initial readership of the volume, although this has less relevance for the UK readership. For UK students of German law this will be of immense value and could be used in conjunction with a German language casebook such as Richter and Schuppert, *Casebook Verfassungsrecht*.

It clearly succeeds in one of its more simple aims, that of bringing together for the first time in English all the important cases of the Federal Constitutional Court. In total the volume contains translated extracts of 71 cases and there are references to c.380 cases altogether. There are and have been other books giving details in English of the case law of the Federal Constitutional Court but none are so extensive and some have proved impossible to obtain, e.g. Murphy & Tanenhaus (1977) and Cappelletti & Cohen (1979). This work has pleasantly relieved me of the increasingly frustrating task of trying to track down these elusive volumes.

It is most unfortunate that referencing to the cases is incomplete. The Index gives page references to the most important cases and there is even a list of cases at the beginning of the book but without page numbers. Not all of these cases are included in the Index and it is difficult to understand why this case list was included. The text does not make it clear whether this is a complete list of all the cases decided by the court or whether it is a list of all the cases referred to in the text. It would have been so easy to include this useful and indeed necessary information to obtain the greatest benefit from this volume as a work of reference, which it clearly is aimed to be. It is only at p. 119 that one incidentally discovers a statement that up to 1979 there have been 1,640 published decisions of the court.

A general comment that can be made, before moving on to consider the parts of

the book individually, is with regard to the provision of translations of German terminology in the text. The provision and form of the terminology given is something of which I heartily approve and consider very useful for those who are in the process of improving their German legal language, e.g. 'Natur der Sache' (Nature of the subject matter) which is to be found on p.97 and is not just translated but the constitutional implications of the concept conveyed by this phrase are explained.

Part One consists of two chapters both of which emphasise historical development, the first of which is an extensive introduction to the constitution, jurisdiction and the staff of the Federal Constitutional Court.

The second chapter concentrates on the current Basic Law (Constitution). The author acknowledges quite correctly that these terms, in the context of the Federal Republic, have become interchangeable terms and it can be said that this is no longer a controversial proposition. An overview is given of the provisions of the Basic Law and their relevance to the constitutional position and function of the Federal Constitutional Court. Further details on the fundamental principles of state and references to some of the early and notable case decisions of the court are given. As such then the first two chapters act as an introductory text to the Federal Constitutional Court, Constitutional law and the procedure of the court and compare favourably with any other currently available. As a part of that basic information there is a section on the historical development of the concepts of judicial and constitutional review in the evolving German states. These terms are defined to highlight the extensive role given the Federal Constitutional Court in comparison with earlier German courts.

The first Part refers extensively to a previous book written by the author and also to be recommended: *Judicial Politics in West Germany: A Study of the Federal Constitutional Court* (1976).

Part Two consisting of three chapters studies what the author terms the 'structural provisions of the Basic Law', i.e. those that determine the nature and form of the present German state, including the procedural devices which support the substantive rules determining democracy and the other fundamental state principles. The chapters concentrate on the fundamental principles of Federalism, Separation of Powers and Political Representation and Democracy.

In this and the next Part of the book the translated highlights of the case law of the court are introduced. A most notable attribute of this volume is that none of the extracts are devoid passages. They are carefully introduced individually and explained both in terms of their own context and in the context of the scheme of things. Furthermore they are also collectively integrated into the theme of the chapters and the book as a whole in the concluding remarks to each chapter, along with the views of other authors on the court and comparison with the U.S. Supreme Court.

Part Three, divided into four chapters, applies the same treatment to cases dealing with the area of basic fundamental rights, the first nineteen Articles of the Basic Law.

The division of this Part is, as hinted at by the author, somewhat artificial because of the combination of basic rights in some cases, the overlap of subject areas and the clashes of fundamental rights in other cases. However no better division can be suggested and rather than incurring a chapter of some 250 pages, the division chosen does serve to present the material in digestible portions.

The volume is concluded with selected provisions of the Basic Law, a list of the judges of the court and the notes to the chapters. A further criticism can be made

here which I suspect may be levelled at the publishers rather than the author. This is in respect of the positioning of the footnotes which appear at the end of the work rather than preferably at the bottom of each page or less preferably at the end of each chapter. Page footnotes are far, far easier to refer to. The reason for their position is likely to be connected with the price of the volume which, for the size and the quality of the work, is really very modest.

It is evident a great deal of work has gone into this book and, with luck, current events will not undermine its worth. As this review is written (July 1990) the form of unification of the two Germanies so far suggested would indicate that no great change, as far as Constitutional law is concerned, will take place.

This work not only provides a commentary on the jurisprudence of the Federal Constitutional Court, which includes the most impressive collection of translated material so far to be published, but is also of current worth as an extremely competent text on constitutional law. It will become essential reading for students of German law and legal system.

NIGEL FOSTER

1. (Bundesverfassungsgericht) (BVerfG.) referred to in the text as the Federal Constitutional Court.

Sokrates. JOHANNES IRMSCHER. (3rd ed.) Leipzig. 1989. Verlag Phillip Reclam jr. 120 pp. (incl. index).

Professor Irmischer, author of several works on classical antiquity, takes a rather different view of the justice of the trial of Socrates from that of I. F. Stone, whose work was reviewed in the last issue. He is seen not as an active subversive or committed reactionary but rather as a man who moved among aristocrats and elites and expected gentlemen to behave with the highest moral and rational principles. He opposed the Thirty Tyrants, who were Spartan puppets, but he felt remote from the younger democracy of his declining years and scorned the attempts of some of the parvenus to gain favour by feeding popular prejudices. The only juridical charge against Socrates in his trial in 399 B.C. was based on a resolution condemning scientific experiment, particularly in astronomy, for which Anaxagoras had been exiled and in a later age Galileo was to suffer. The charge of corrupting youth was, as he pointed out, no crime known to the law of the city. Irmischer follows Xenophon's *Apologia* as more reliable than Plato's construct of Socrates' views. Socrates followed no new or alien gods, but his references to his 'Daemon' as communicating to him, even via Apollo and his Delphic oracles, seem to have been damning to his hearers, as was his reported arrogant and defiant attitude in court.

The trial section is only one of a number of sections of the book which also cover Socrates' origins and education and his pupils, as well as his relation to the Sophists and to Natural Law theory. All of this is placed in a framework of the political, economic and social conditions in the Athens of his time which are rather more fully dealt with than necessary.

Experts differ as to how far Socrates himself shared Plato's views in the *Republic* on a kind of totalitarian gerontocracy with little room for individual free-

dom, or whether either philosopher was describing a real world or an imagined system devised to exercise one's mind.

BETINIO DIAMANT
ALBERT KIRALFY

The Welsh Laws. T. M. CHARLES-EDWARDS. Cardiff. 1990. The University of Wales Press for the Welsh Arts Council. 106pp. £3.50 limp.

It is somewhat surprising to find a work on mediaeval law being published by the Welsh Arts Council, and more particularly as part of a series entitled *Writers of Wales*. One might be forgiven for expecting such a series from such a source to be limited to poets, novelists and perhaps writers in disciplines such as history, theology or philosophy. The authors of the Welsh law books would seem to fall within the category 'writers of Wales', but hardly the laws about which they wrote. Yet Dr Charles-Edwards has contributed this volume to that series, and while its place in the series will doubtless perplex some, as an extension to the literature concerning the jurisprudence of mediaeval Wales it deserves a warm if somewhat cautious welcome.

The welcome should be warm because the author is both imaginative and stimulating in what he has to say about the Welsh laws. He begins by illustrating the employment of a legal rule by one of the parties to a dispute so as to force the other party to settle. This example is taken from the *Mabinogion*, a literary rather than a historical source. Dr Charles-Edwards draws on the *Mabinogion* to illustrate that the written laws are only one source from which knowledge of the law can be gleaned, literature and administrative records also being important. As an historian, rather than a lawyer or literary scholar, he emphasizes the need to place the laws in a broader context of historical evidence in order to discover the social circumstances in which the laws operated. Unfortunately, this promising initial line of inquiry is, once mentioned, abandoned. Hence, the need for the welcome to be cautious.

The Welsh laws are traditionally known as the Laws of Hywel, Hywel Dda being a Welsh prince of the first half of the tenth century. The texts in which these laws have survived come from the twelfth and thirteenth centuries. It is likely therefore that before that time the laws were preserved by means of a malleable, oral tradition, and Dr Charles-Edwards argues that the approval of the ecclesiastical authorities claimed for the laws under Hywel may well have been inserted so as to withstand canonical criticism in the later twelfth and thirteenth centuries, regarding such items as the favour which the Welsh laws showed to illegitimate children in matters of inheritance. Equally, the laws may have been seen at this time as an indicator of the separate identity of the Welsh as against the English, particularly under Edward I. The author also takes note of the added prestige being accorded to written laws at this time, although more might have been made here of the influence of the revival of Roman law studies in Europe. Likewise, the similarity to the Roman quasi-delict of *iudex qui litem suam fecit* is not explored in the comments on the Welsh liability of a judge for giving wrong judgement.

The three traditions of the Welsh laws, their origins and relationship are explored, and the author considers what was the source which inspired the reduction to writing of these traditions in the twelfth and thirteenth centuries. It is

again something of a shame that while the author does allude to the production of *Glanvill* at the end of Henry II's reign, nothing is made of the closer analogy to the composition of *Quadrupartitus* at the start of the twelfth century, which work like some of the early Welsh texts was a Latin translation of older vernacular sources.

When Dr Charles-Edwards turns to the question of the authorship of the law books, which one might have thought the central topic of a work in a *Writers* series, he notes the importance to the writers of kinship to earlier generations of jurists, and the clear evidence of one attested juristic family in the thirteenth century. The evidence regarding authorship however is clearly sparse, and the author is more at ease when he goes on to describe the structure of the works. He highlights the casuistic technique of the writers, making valuable comparisons with both Roman and English equivalents. He believes the texts were written to instruct judges in how to decide cases. He assumes that the decision of legal questions would have fallen to the judge in the society which the laws served, which assumption is, in your reviewer's opinion, unwarranted. Serious consideration needs to be given to whether the points of law were not left for the jurists to decide, particularly as Dr Charles-Edwards suggests the test of wrong judgement was whether it accorded with the law books, that is juristic opinion. In fairness the author does consider possible Romanist influence in this part of his discussion, and his analysis of how the developing art of pleading may have shaped the changes to the structure of the law books is one of the most rewarding sections of the work.

While it is difficult to trace the development of the texts prior to the twelfth century, it is fairly clear that the tractates which are contained in the surviving law books were based upon an original text which they in turn expound. Dr Charles-Edwards wonders whether the lost model text was the law of Hywel, given the deep roots which the prince's name has in the Welsh legal tradition. He also holds that the Irish *Senchas Már* may have been an important influence, even though there does not appear to be any Irish borrowing in the Welsh laws. However, this attempt to link the Welsh laws into a clan of Celtic jurisprudence does not appear to be warranted by the evidence, as Dr Wendy Davies indicated in an essay on Breton laws a few years ago. Dr Charles-Edwards closes by considering the effects of the Edwardian conquest upon the legal tradition, and there is a very good bibliography at the end of the volume.

The book suffers from a certain lack of direction. It is uncertain whether the author is reviewing what is known, or setting out new directions of enquiry. These defects are probably the result of constraints regarding the length of the volume. For those with some familiarity with the literature on the subject, it raises valuable questions and indicates, but rarely pursues, worthwhile lines of enquiry. Your reviewer is doubtful as to its suitability for a reader with no previous knowledge of the subject. He admits to total mystification as to what insight it provides on writers of Wales.

T. G. WATKIN

ERRATUM

In T. G. Watkin's Note on 'Stipulatio' in (1990) 11 *Journal of Legal History* 447, the words $\chi\alpha\omega\omega\upsilon$, $\chi\alpha\alpha\nu\alpha$, and $\chi\alpha\nu\nu\eta$ on page 449 should have read $\chi\alpha\omega\omega\upsilon$, $\chi\alpha\alpha\nu\alpha$, and $\chi\alpha\nu\nu\eta$ respectively.